

25STCV30159 25STCV30159

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Case Number: 25STCV30159 Hearing Date: August 20, 2026 Dept: 508

Superior Court
of California

County of Los
Angeles

Department 508

JEFREY
FERRIS,

Plaintiff,

vs.

BLUE
SHIELD OF CALIFORNIA PROMISE HEALTH PLAN, et al.,

Defendants.

Case No.:

25STCV30159

Hearing Date:

August 20, 2026

Hearing

Time: 8:30 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANT

ADVENTIST HEALTH CARE NETWORK, INC.'S MOTION TO STRIKE PUNITIVE DAMAGES
PORTION OF PLAINTIFF'S FIRST AMENDED COMPLAINT

Background

On October 15, 2025, Plaintiff

Jeffrey Ferris ("Plaintiff") filed this action against Defendants Blue Shield
Promise Health Plan, Imperial Health Holdings, and Adventist Health Physicians
Network, alleging four causes of action.

Plaintiff filed the operative first

amended complaint ("FAC") on February 10, 2026. Plaintiff dismissed Adventist
Health Physicians Network and added Adventist Health Care Network, Inc. as Doe

1. The FAC alleges four causes of action for (1) breach of the implied covenant
of good faith and fair dealing, (2) breach of contract, (3) violations of Business & Professions Code section 17200, and (4)
negligence.[1]

Adventist Health Care Network, Inc.

("Adventist") now moves to strike portions of the complaint relating to
punitive damages. Plaintiff opposes. Adventist did not reply.

Legal Standard

A court may "[s]trikeout any irrelevant,

false, or improper matter inserted in any pleading" or "[s]trike out all or any
part of any pleading "not drawn or filed in conformity with the laws of this
state, a court rule, or an order of the court." (CC Code

Civ. Proc., § 436, subds. (a)-(b)CC.) "CCThe grounds for a motion to strike
shall appear on the face of the challenged pleading or from any matter of which
the court is required to take judicial notice." (CC Code

Civ. Proc., § 437CC.)

"Where the defect raised by a motion to

strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question. [Citations.] A pleading may be stricken only upon terms the court deems proper [citation], that is, terms that are just. [Citations.] It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader's action." ((Velez v. Smith (2006) 142 Cal.App.4th 1154, 1174-1175 [internal quotations omitted].)

Discussion

A.

Meet and Confer

As a preliminary

matter, the Court notes that the parties did not meet and confer. Adventist's counsel's declaration in support of the motion states that she sent an email on March 16, 2026, and two days after, "on March 18, 2025, I called Plaintiff's counsel in attempts to meet and confer but was unable to reach them and did not receive a call back." (Minassian Decl., ¶¶ 3, 5.) Pursuant to Code of Civil Procedure section 435.5, subdivision (a), "[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike." (Emphasis added.)

The Court recognizes that meeting and conferring cannot be a one-sided endeavor. However, Adventist's counsel called Plaintiff's counsel for the first time the same day the instant motion was filed. Given that counsel's statutory obligation is to meet and confer orally, calling once and subsequently filing the motion is not a good faith meet and confer attempt. Nonetheless, the Court exercises its discretion to hear the motion because Adventist's counsel attempted to contact Plaintiff by phone.

B.

Punitive Damages

Adventist moves to strike two portions of Plaintiff's FAC that relate to punitive damages. Adventist moves to strike on the basis that "Plaintiff

alleges a single cause of action of Negligence arising from Plaintiff's claims that defendant allegedly failed to timely authorize necessary medical procedures and providers... Plaintiff does not allege any conduct undertaken by Defendant that was intended to cause injury to Plaintiff, nor does he allege despicable conduct wit[h] a willful and conscious disregard of the rights or safety of others. Furthermore, Plaintiff does not allege facts that Defendant had prior knowledge that any agents or employees were likely to inflict injury on others and employed any such agents or employees with a conscious disregard for the rights and safety of others." (Mot., 4:5-14.)

Punitive damages may be

recovered upon a proper showing of malice, fraud, or oppression. (Civ. Code, § 3294, subd. (a).) A motion to strike may lie where the facts alleged do not rise to the

level of "malice, oppression or fraud" required to support a punitive damages

award. (Turman v. Turning Point of Central

California, Inc. (2010) 191 Cal.App.4th 53, 63-64.) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294,

subd. (c)(1).) "Oppression" means despicable conduct that subjects a person to cruel

and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294, subd. (c)(2).) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known

to the defendant with the intention on the part of the defendant of thereby

depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).)

Conclusory

allegations, devoid of any factual assertions, are insufficient to support a

conclusion that parties acted with oppression, fraud, or malice. (Smith v.

Superior Court (1992) 10 Cal.App.4th 1033, 1042.) To justify punitive

damages on this basis, a "plaintiff must establish that the defendant was aware

of the probable dangerous consequences of [their] conduct, and that [they]

willfully and deliberately failed to avoid those consequences." (Id., at pp. 895-896.) California law follows a

heightened pleading standard for punitive damages—vague and conclusory

allegations are insufficient. (G.D. Searle

& Co. v. Superior Court (1975)

49 Cal.App.3d 22, 29.) The trial court shall strike an allegation of

punitive damages on motion unless the plaintiff pleaded ultimate supporting

facts. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

Adventist

contends that “Plaintiff’s allegations offered in support of his punitive damages claim are insufficient as they fail to establish the requisite elements of malice, oppression, or fraud. Plaintiff alleges that Defendant engaged in self-interested cost-saving practices that resulted in Plaintiff’s health service authorization being delayed (FAC ¶¶ 60-64), but these claims lack specificity and do not demonstrate any intentional wrongdoing or conscious disregard for Plaintiff’s rights. There are no factual assertions showing that Defendant acted with a willful intent to cause harm or that its conduct was despicable.” (Mot., 6:18-24.) Adventist further alleges, “[i]n a Negligence action, conclusory allegations that characterize a defendant’s alleged negligent conduct as ‘malicious’ or ‘intentional’ are insufficient and subject to a motion to strike.” (Mot., 7:1-2.)

In opposition, Plaintiff asserts that his “FAC provides more than enough facts demonstrating Adventist’s oppressive, malicious, and fraudulent conduct in handling Plaintiff’s requests for medically necessary referrals and authorizations.” (Opp., 8:1-3.) Plaintiff then outlines the allegations of the FAC regarding Adventist’s “conduct in: (1) issuing authorizations on July 10, 2024 for Plaintiff—then suffering from partial paralysis—to consult with a neurologist and a pain management specialist who did not accept Plaintiff’s insurance, rendering the authorizations completely ineffective, FAC, ¶ 19; (2) authorizing MRI imaging on July 18, 2024 at a facility that did not provide the upright MRI services Plaintiff required, rendering that referral ineffective as well, FAC, ¶¶ 20-21; (3) failing to provide timely, effective access to specialists and diagnostic imaging during the critical weeks in which Plaintiff’s undiagnosed spinal cord compression was worsening, leaving his continuous, documented requests unanswered until his condition required an emergency spinal decompression laminectomy and cervical fusion on August 1, 2024, FAC, ¶¶ 21-23 & 26; (4) after the emergency surgery, authorizing ‘therapy’ at a pediatric-focused provider clearly inappropriate for an adult patient, and submitting the referral to the other facility for occupational rather than physical therapy, thereby preventing Plaintiff from accessing the therapy his providers prescribed, FAC ¶ 25; (5) leaving Plaintiff without any physician willing to manage his post-surgical pain medication, FAC, ¶ 24; and (6) doing all of the foregoing intentionally and purposefully, pursuant to practices intentionally designed to save money by denying Blue Shield members access to timely medically necessary services in order to increase Adventist’s profits under its capitation agreement, and despite knowing the physical and

emotional suffering its conduct would necessarily cause, FAC, ¶¶ 30 & 64.” (Opp., 8:3-20.)

Plaintiff

then asserts that “[i]f proven, Plaintiff’s allegations, which are incorporated into the Negligence claim against Adventist, FAC ¶ 59, would surely suffice to permit the jury to conclude that, by engaging in this course of conduct, Adventist acted maliciously, oppressively and fraudulently. Maliciously in that Adventist persisted in issuing ineffective referrals and ignoring Plaintiff’s urgent requests despite knowing the severity of his condition—i.e., a man descending into paralysis—thereby demonstrating despicable conduct carried out with ‘a willful and conscious disregard’ of Plaintiff’s rights.” (Opp., 8:21-27.)

Plaintiff

contends that “[a] delegated entity that, to protect its own profits, hands a patient descending into paralysis a series of paper ‘authorizations’ that it knows lead nowhere” is despicable. (Opp., 9:3-5.) Plaintiff similarly asserts that oppression is alleged, because “Adventist’s conduct subjected Plaintiff to ‘cruel and unjust hardship’ in the form of weeks of undiagnosed spinal cord compression, an emergency spinal surgery, months without prescribed therapy or pain management, and permanent physical impairment, all ‘in conscious disregard’ of his rights. There are also sufficient allegations of fraud, in that Adventist repeatedly issued ostensible ‘authorizations’—to specialists who did not accept Plaintiff’s insurance, to a facility that did not offer the required imaging, and to a pediatric therapy provider—that created the false appearance that benefits were being provided while in fact depriving Plaintiff of the care his physicians ordered. FAC ¶¶ 19-21 & 25. Moreover, the FAC alleges that Adventist’s described conduct was undertaken pursuant to its practices that are intentionally designed to save money by denying members access to timely medically necessary services. FAC, ¶¶ 30 & 64. These allegations of systematic practices further support punitive damages.” (Opp., 9:6-18.)

The crux

of Adventist’s punitive damages argument is that Plaintiff cannot recover punitive damages for a negligence cause of action and conclusory allegations. However, as Plaintiff discussed, the allegations in the FAC are not conclusory. The allegations are specific and detail a series of Adventist’s failures to provide Plaintiff with sufficient referrals, health services, and timely authorization for medical procedures, when time was of the essence. Although

negligent conduct alone does not give rise to punitive damages, Plaintiff alleges more than mere negligence—the allegations in the FAC go beyond carelessness and extend into an extreme disregard for Plaintiff's well-being. Accordingly, punitive damages are sufficiently alleged.

C.

Corporate Liability

Adventist

also asserts that “[e]ven if the FAC had contained allegations sufficient to sustain a claim for punitive damages, there are nevertheless no allegations directed specifically at one of Defendant’s officers, directors, or managing agents.” (Mot., 7:20-22.)

Civil Code section 3294, subdivision (b) states that “[a]n employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” “‘Managing agents’ are employees who ‘exercise[] substantial discretionary authority over decisions that ultimately determine corporate policy.’ . . . ‘[T]o demonstrate that an employee is a true managing agent under [Civil Code] section 3294, subdivision (b), a plaintiff seeking punitive damages would have to show that the employee exercised substantial discretionary authority over significant aspects of a corporation’s business.’” (Davis v. Kiewit Pacific Co. (2013) 220 Cal.App.4th 358, 366, emphasis in original.)

Adventist

contends that “Plaintiff fails to allege any impropriety by an officer, director, or managing agent of Adventist Health. Simply naming Adventist Health as a defendant, without specific allegations of wrongful conduct or involvement by an officer, director, or managing agent in the actions leading to the punitive damages claim (i.e. allegations that they personally engaged in, authorized, or ratified the allegedly improper acts) is insufficient to meet the legal standard required to hold Defendant liable for punitive damages.” (Mot., 8:9-14.)

Plaintiff's

opposition asserts that "Paragraph 47 of the FAC—which is expressly incorporated into the Fourth Cause of Action for Negligence against Adventist, see FAC ¶ 59—alleges:

Defendant's

conduct described herein was undertaken by the corporate defendant's officers or managing agents, identified herein as DOES 1 through 100, inclusive, who were responsible for claims supervision and operations, underwriting, communications and/or decisions. The aforementioned conduct of said managing agents and individuals was therefore undertaken on behalf of the corporate defendants. Said corporate defendants further had advance knowledge of the actions and conduct of said individuals whose action and conduct were ratified, authorized, and approved by managing agents whose precise identities are unknown to Plaintiff at this time and are therefore identified and designated herein as DOES 1 through 100.

FAC, ¶ 47. These allegations track each of the alternative bases for corporate punitive liability under Civil Code § 3294(b)—advance knowledge coupled with conscious disregard, authorization or ratification of the wrongful conduct, and personal culpability of an officer, director, or managing agent." (Opp., 11:10-21.) Plaintiff further alleges that "the substantive misconduct alleged in the FAC is not the isolated act of a rogue line employee; it is the operation of Adventist's own institutional 'practices that are intentionally designed to save money by denying Blue Shield members like Jeffrey access to timely medically necessary services.' FAC, ¶¶ 30 & 64. The adoption and implementation of such company-wide practices is, by definition, an exercise of substantial discretionary authority over decisions that ultimately determine corporate policy—which is precisely what makes an employee a 'managing agent' under section 3294(b)." (Opp., 11:22-12:1.)

Plaintiff

also asserts that "[t]o the extent Adventist demands that Plaintiff identify its officers or managing agents by name at the pleading stage, the demand finds no support in the law. The identities of the individuals who devised, implemented, authorized, and ratified Adventist's practices are peculiarly within Adventist's own knowledge and can only be confirmed through discovery; for this reason, the FAC properly designates them as DOES 1 through 100. FAC, ¶ 47. Less particularity in pleading is required where, as here, the defendant

may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff.” (Opp., 12:4-10.)

As

Plaintiff notes, less specificity is required

if it appears from the nature of allegations that the defendant must

necessarily possess full information, or if the facts lie more in the knowledge

of opposing parties.¿(Alfaro

v. Community Housing Improvement System & Planning Assn., Inc.¿(2009) 171 Cal.App.4th

1356, 1384-1385.) Instead, such details “are properly the

subject of discovery.” (Ibid.) From the FAC

and the opposition, it appears that the identities of any possible individuals

who caused Plaintiff harm are within Adventist’s knowledge. Additionally,

Plaintiff alleges that Adventist authorized or

ratified the conduct on which Plaintiff’s causes of action are predicated. Based

on the foregoing and in light of Adventist not filing a reply to rebut

Plaintiff’s assertions, the Court finds that Plaintiff adequately pleads

punitive damages against a corporate defendant.

Conclusion

Based on the foregoing, Adventist’s motion to strike punitive

damages is DENIED.

Adventist is ordered to give

notice of this Order.

DATED: August

20, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court

[1] Negligence is the

only cause of action in the FAC alleged against Adventist.